Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Limbach Company LLC
30 Corporate Drive
Burlington, MA 01803
Phone: (781) 935-6700
24/7 Emergency Service: (781) 935-0067

SUBCONTRACT FOR MANNED CRANE RENTAL

JOB NUMBER: 1250192. **SUBCONTRACT NUMBER: 1250192-M01**	**PROJECT: Whittier Westborough RTU Replacements Y** **DATE: 12/15/2025**
FROM: **Limbach Company-NE** **30 Corporate Drive, Suite 350** **Burlington, MA 01803** **Phone:781-935-6700 Fax:**	**TO:** **C.J. SHAUGHNESSY CRANE SERVICE INC** **520 BODWELL ST EXT** **AVON, MA 02322** **Phone: 781-315-5321 Fax:**

THIS SUBCONTRACT is entered into on 12/15/2025 by and between Limbach Company LLC (hereinafter "Contractor") and C.J. SHAUGHNESSY CRANE SERVICE INC (hereinafter "Subcontractor").

WHEREAS, Contractor has entered into a certain contract (hereinafter "Principal Contract"), dated 12/15/2025, with C.J. SHAUGHNESSY CRANE SERVICE INC (hereinafter "Principal"), to execute construction work for Principal on Whittier Westborough RTU Replacements Y, at 150 Flanders Rd (hereinafter "Project") for WHITTIER HEALTH NETWORK (hereinafter "Owner"), and this Subcontract is for the performance by Subcontractor of a portion of such work.

SCOPE OF WORK (hereinafter "Work"):
Provide crane and riggers with equipment to receive, store, deliver, hoist and replace (16) RTUs with curb adapters as directed.
Heaviest RTU weighing up to 2,600 lbs.
Hoisting to be completed from private property with access from North and South side parking lots.
All work to be completed with up to (4) Consecutive weekday mobilizations.
Includes disposal of existing reclaimed units.

LIST OF EXHIBITS:
A thru D

Subcontract Price: $26,800.00
Retainage Percentage: 0.0000%

TERMS AND CONDITIONS, ATTACHED HERETO: Articles 1 thru 20, inclusive

This Subcontract constitutes the entire agreement between the parties and supersedes any and all other written or oral agreements. This Subcontract cannot be amended or changed, nor may any provision hereof be waived, except in writing signed by an authorized representative of the parties.

IN WITNESS WHEREOF, the parties hereto executed this Subcontract the day and year first above written.

Attest/Witness:

Signed by:
Pamela Sanchez
0226676C92B740C...

LIMBACH COMPANY LLC
(Contractor)

DocuSigned by:
By: Patrick Costello
9480EDD658AD496...

Title: GM

DS
AB

Initial
DC

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Attest/Witness:

_____

C.J. SHAUGHNESSY CRANE SERVICE INC
(Subcontractor)

DocuSigned by:

By: Chris Shaughnessy
022826940A834E6...

Title: President

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Limbach Company LLC
46 Jonspin Road
Wilmington, MA 01887
Phone: (781) 935-6700
24/7 Emergency Service: (781) 935-0067

Terms effective: 10-2015

LIMBACH COMPANY LLC
TERMS AND CONDITIONS TO SUBCONTRACT FOR MANNED CRANE RENTAL

ARTICLE 1 - SCOPE OF WORK

Subcontractor shall furnish, in strict accordance with the Contract Documents, all labor, materials, tools, machinery, equipment, hoisting, rigging, storage facilities, utilities, supplies and services and do all things necessary for the complete performance of the Work.

Subcontractor shall provide, during the entire duration of the Work, a jobsite superintendent with full authority to act on behalf of Subcontractor and any other supervisory personnel needed to assure compliance with the requirements of this Subcontract. Subcontractor shall also provide quality control and safety equipment required to complete the Work of this Subcontract.

If rigging is to be provided by Subcontractor, that requirement shall be so stated on the front page of the Subcontract and the rigging will be provided pursuant to the attached Rigging Exhibit.

ARTICLE 2 - SUBCONTRACT PRICE AND PAYMENT

The Subcontract Price to be paid by Contractor to Subcontractor includes any and all fees, permits and licenses arising out of the Work, subject to additions and/or deductions as provided herein. Any sales, use and other taxes may not be included in Subcontractor's quoted price and, therefore, Contractor and Subcontractor shall agree upon a final Subcontract Price that will be listed out on the front page of the Subcontract, which includes all applicable taxes that will be paid by Subcontractor. Contractor herby agrees to pay Subcontractor within 45 days from the date of Subcontractor's invoice, unless Contractor does not receive payment from Principal as a result of Subcontractor's act or omissions on the Project. In that event, Subcontractor acknowledges and agrees that receipt of payment by Contractor from Principal is an express condition precedent to Subcontractor's right to receive payments from Contractor and Contractor shall have no obligation to pay Subcontractor unless and until the condition of Subcontractor's performance giving rise to Principal's refusal to pay Contractor is resolved and payment is made to Contractor.

Contractor may, in its sole discretion, make payments directly to sub-subcontractors, labor and/or material suppliers of Subcontractor to satisfy claims and/or liens, by joint check or otherwise, and deduct the amount of any such payments from amounts due or to become due to Subcontractor under this Subcontract. Contractor shall be entitled to withhold payments for (a) amounts withheld by Owner or Principal applicable to Subcontractor's Work, (b) damages incurred through delay by Subcontractor, and (c) damages incurred to remedy a default by Subcontractor. This remedy shall be in addition to any other remedies provided for elsewhere in this Subcontract or existing at law or in equity. Contractor shall have the right to set off against any sums due Subcontractor hereunder any claims Contractor may have against Subcontractor under this Subcontract or any sums due to Subcontractor under any other subcontract between Contractor and Subcontractor without prejudice to the rights of the parties in regard to such claims.

No payment made under this Subcontract shall constitute evidence of partial or complete performance of this Subcontract or acceptance of the Work, nor shall entrance by or use of all or any part of the Work by Contractor, Principal or Owner constitute acceptance of the Work.

ARTICLE 3 - TIME OF COMPLETION AND SCHEDULE

Time is of the essence in this Subcontract. Subcontractor shall comply with the schedules and completion dates set forth in the Contract Documents and with all schedules issued by Principal or Contractor. Subcontractor shall secure all necessary information and approvals, and plan, purchase, fabricate and do all things necessary to comply with the schedules and completion dates. Subcontractor shall coordinate its Work under the Subcontract with the work of the Contractor, Principal and all other contractors and subcontractors on the Project in order to comply with the schedules and completion dates.

Initialed by:

Contractor: PC DS Subcontractor: CS DS

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

If Subcontractor delays the material progress of the Project, Subcontractor shall indemnify and hold harmless Contractor, Principal and Owner from liability for any and all damages, costs and expenses (including attorneys' fees) incurred by Contractor, Principal, and Owner because of any such delay.

When directed by Contractor, Subcontractor shall increase manpower, work additional hours and shifts, work weekends and holidays, and expedite equipment and material deliveries to the extent necessary, in Contractor's opinion, to comply with Subcontractor's obligations under this Article.

If Subcontractor shall be delayed in the performance of the Work by any cause beyond its control or not within its reasonable control to avoid, Subcontractor shall promptly notify Contractor in writing. The time of completion of the Work under the Subcontract shall be extended only to the extent that the time of completion is extended by Principal or Owner under the Contract Documents. An extension of time is the sole and exclusive remedy of Subcontractor for any delay to the performance of its Work, except to the extent that the right to receive additional compensation for delay is provided for in the Principal Contract and the owner's prime contract and to the extent that Contractor actually receives additional compensation on behalf of Subcontractor from Principal or Owner due to delay or suspension of the Work.

ARTICLE 4 - CHANGES IN WORK

Subcontractor shall make changes in the Work as directed by written order from Contractor. Subcontractor shall not make changes in the Work unless so directed or approved in writing by Contractor prior to beginning any change to the Work.

If any change causes an increase or decrease in Subcontractor's cost or time required for performance of the Work, an equitable adjustment shall be made to the Subcontract Price and/or time of completion and this Subcontract modified in writing. Any request by Subcontractor for an adjustment in the Subcontract Price or time must be submitted to Contractor in itemized written form within seven (7) calendar days from date of receipt by Subcontractor of notification of a change. Pending a determination of the adjustment, if any, Subcontractor shall proceed with the Work as changed and maintain daily records during the performance of the change indicating the name of each employee, number of hours worked, the equipment and materials used, and a description of the work performed each day in connection with the change.

In the event of changes in the Work ordered by Principal or Owner, or other conduct of the Principal and/or Owner which increase Subcontractor's cost or time of performance, Contractor shall not be obligated to pay Subcontractor a greater sum than the Contractor is paid by the Principal and/or Owner for any such change or conduct, less reasonable overhead and profit to Contractor. In the event of deletions in the Work ordered by Principal or Owner, the amount of the deduction imposed upon Contractor by the Contract Documents for such deletion shall be deducted from the amount of the Subcontract Price.

If Contractor receives a claim from Subcontractor due to changes ordered by Principal or Owner or due to other conduct of the Principal and/or Owner, Contractor will submit the claim to Principal and/or Owner for processing in accordance with the Contract Documents. The submission of a claim to Principal and/or Owner on behalf of Subcontractor shall not be deemed an admission by Contractor, nor raise any presumption as to the validity or correctness of Subcontractor's claim. Subcontractor shall bear all expenses and burden of pursuing and proving its claim.

ARTICLE 5 - TERMINATION FOR DEFAULT

In the event Subcontractor should become bankrupt, insolvent, fail to pay for materials or services for which it has received payment from Contractor, make an assignment or arrangement for creditors, refuse or neglect to prosecute the Work properly and diligently, or fail to perform any of the provisions of this Subcontract, Contractor shall notify Subcontractor in writing of the default(s) and, after seventy-two (72) hours Contractor may at its option cease making any further payment to Subcontractor, terminate Subcontractor's right to proceed with all or any part of the Work and complete the terminated Work by such means as Contractor sees fit, at the cost and expense of Subcontractor. In any such event, Contractor may recover from Subcontractor the total amount of any loss or damage incurred as a result of such default, including reasonable attorneys' fees, and deduct any of the foregoing amounts from payments otherwise due or to become due to Subcontractor. If the damages incurred as a result of such default are in excess of the payments due Subcontractor, then Subcontractor or its surety shall promptly pay the total amount of any such excess to Contractor. These remedies for default are in addition to any other rights or remedies of Contractor elsewhere in this Subcontract or existing at law or in equity.

ARTICLE 6 – TERMINATION FOR CONVENIENCE

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Notwithstanding any provision to the contrary, Contractor shall have the absolute right to terminate this Subcontract at any time for any reasons whatsoever upon seventy-two (72) hours' written notice of termination to Subcontractor without liability to Contractor, except that Subcontractor shall be entitled to payment pursuant to the terms of this Subcontract for all Work properly performed as of the date of termination. The aforesaid payment by Contractor to Subcontractor shall be Subcontractor's sole and exclusive remedy for a termination of this Subcontract for convenience.

If the Principal Contract is terminated for convenience, Contractor shall deliver written notice to Subcontractor. Upon receipt of said written notice, Subcontractor shall (a) stop Work as directed by Contractor; (b) take actions necessary, or as Contractor may direct, to protect the Work in place; and (c) except as provided otherwise in the termination notice, terminate all existing sub-subcontracts and purchase orders. In the event that the Principal Contract is terminated for convenience, Contractor's liability to Subcontractor shall be limited to Subcontractor's pro-rata share of the amount paid by the Principal and/or Owner to Contractor due to such termination for convenience.

In no event shall Subcontractor be entitled to recover anticipated profit or overhead on Work not performed, or any other indirect or consequential expenses or damages.

ARTICLE 7 - SUBLETTING AND ASSIGNMENT

Subcontractor shall not assign this Subcontract, or sublet or subcontract any part of the Work, or assign the right to receive any payments due or to become due hereunder without prior written consent of Contractor, and Contractor's consent to any such assignment or subcontract shall not relieve Subcontractor of any liability for the full and complete performance of this Subcontract.

ARTICLE 8 - INSURANCE

Subcontractor shall procure and maintain all insurance coverage required by the Contract Documents, but not less than the following: (1) insurance as required under the applicable Workers' Compensation and Occupational Safety and Health Acts; (2) Comprehensive General Liability Insurance, including contractual liability coverage for the indemnification clauses stated herein, with limits not less than $2,000,000 per occurrence; (3) Contractor's Protective Liability Insurance with limits not less than $500,000, if any of the Work is to be sublet; (4) Completed Operations coverage; (5) Automobile Liability Insurance with limits not less than $500,000; and (6) Installation Floater Property Insurance with limits not less than $500,000. General Liability and Automobile Liability Insurance limits may be attained by individual policies or by a combination of underlying policies with umbrella and/or excess liability policies.

Contractor, Principal and Owner shall be named as additional insureds under the policies of insurance required by the Contract Documents (except for Workers' Compensation) and shall be afforded the same coverage under the policies as Subcontractor. Certificates of such insurance shall be filed with Contractor ***prior*** to the commencement of any Work by Subcontractor, shall be subject to approval of Contractor, and shall provide for thirty (30) days' written notice to Contractor of changes in or cancellation of any such insurance. No payment under this Subcontract shall be made to Subcontractor until the required certificates of insurance have been filed with Contractor.

Subcontractor and its insurance carriers waive subrogation rights against Contractor, Principal, Owner and their insurance carriers for losses covered by Subcontractor's insurance, and will include this same requirement in contracts with its subcontractors and suppliers. If the policies of insurance referred to in this paragraph require an endorsement to provide for continued coverage where there is a waiver of subrogation, Subcontractor will cause them to be so endorsed.

ARTICLE 9 - INDEMNIFICATION

Subcontractor shall defend, indemnify and save harmless the Owner, Principal, and Contractor, and their officers and employees, from all claims, loss, damage, injury, liability, costs and expenses of whatsoever kind or nature (including attorneys' fees) arising out of this Subcontract or attributable to the Work performed under this Subcontract, except to the extent such claim, loss, damage, injury, or liability is caused by the negligence of an entity indemnified hereunder. Subcontractor's indemnity obligations under this Subcontract shall not be limited by the provisions of any Workers' Compensation or similar acts. In the event that the indemnification required under this Article is prohibited by law, Subcontractor shall indemnify Contractor to the fullest extent permitted by law.

Initialed by:

Contractor: PC (DS) Subcontractor: CS (DS)

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

ARTICLE 10 - LIMITATION OF LIABILITY

Under no circumstances, whether arising in contract, tort (including negligence), equity or warranty (either express or implied) or otherwise will either party be liable or responsible to the other party for any special, indirect, or consequential damages unless expressly provided for in the Principal Contract or the Contract Documents. In such event, Subcontractor shall remain liable to Contractor for any damages assessed by Owner or Principal against Contractor, in accordance with the Contract Documents, in relation to the Work under this Subcontract and caused by Subcontractor's performance or lack thereof.

ARTICLE 11 - SAFETY

Subcontractor is solely responsible for the health and safety of its employees, agents, subcontractors, and other persons on and adjacent to the Project site. Prior to commencing Work, Subcontractor shall submit to Contractor its own safety program, which shall be at least as stringent as Contractor's safety program. Subcontractor shall take all necessary and prudent safety precautions with respect to its Work and shall comply with ALL safety programs and measures initiated by Contractor, Principal, and Owner and with all applicable laws, ordinances, rules, regulations and orders of any public authority for the safety of persons or property, including, but not limited to, OSHA Standard 1926.59 for a Hazardous Communication Standard Policy. Subcontractor and all of its subcontractors shall submit Material Safety Data Sheets ("MSDS") and Hazardous Substance Survey Forms ("HSSF") for all materials for which the MSDS and the HSSF are required by OSHA prior to bringing such materials onto the Project site. Subcontractor agrees to cooperate with Contractor, Principal and Owner on any overall Substance Abuse Program instituted for the Project, and will provide a copy of its own Substance Abuse Policy, if any, to Contractor and Principal prior to commencement of Work.

Subcontractor shall assign a competent safety representative (a) who is certified both in first aid and CPR, (b) who is capable of identifying existing and predictable hazards in the surroundings or working conditions which are unsanitary, hazardous, or dangerous to employees and the public, and (c) who has authorization to take prompt corrective measures to insure the safety of Subcontractor's work areas. Subcontractor's safety representative shall submit Subcontractor's safety plan to Contractor for review prior to the commencement of any work activities on the Project site and shall report within one (1) day to Contractor any injury to any of Subcontractor's employees at the site and all precautions taken to eliminate the cause of each accident.

As an expert in Subcontractor's field of work, Subcontractor's safety representative has sole control over all requirements for doing the work safely, and Contractor is not responsible in any manner for the safety of Subcontractor's Work. If Subcontractor fails to correct unsafe procedures, acts, or conditions within twenty-four (24) hours of notification by Contractor or any public authority, however, Contractor may (but has no contractual obligation to do so) correct the unsafe practice and backcharge the Subcontractor for these costs plus ten percent (10%) for overhead, ten percent (10%) for profit, and twenty percent (20%) for a "safety premium." This specifically includes but is not limited to the cleanup of Subcontractor's construction debris and the replacement of standard railings or barricades removed by Subcontractor's employees. Repeated failures to correct unsafe practices will result in default and termination of this Subcontract pursuant to Article 6 of this Subcontract and without any further notice to Subcontractor. In the event Contractor receives a penalty from OSHA as a result of a violation of OSHA Standards by Subcontractor and Contractor is cited under the multi-employer work site rule, Subcontractor agrees to protect, defend, indemnify and hold harmless Contractor from the imposition of any fines and/or penalties by OSHA.

Prior to any work commencing under this Subcontract, Subcontractor shall submit, upon request by Contractor, copies of any required or pertinent licenses, certifications, inspection reports, inspection logs and/or records of training.

ARTICLE 12 - GUARANTEES

Subcontractor shall protect the Work until final acceptance thereof by Principal and Owner, and shall warrant and guarantee for a period of one (1) year after such acceptance, or for such longer period thereafter as may be provided in the Contract Documents, that the Work shall be free from defects in workmanship and materials, and shall develop the ratings, capacities and characteristics specified in the Contract Documents.

Without limiting the foregoing, Subcontractor agrees to assign to Contractor and/or Owner any and all guarantees or warranties of manufacturers or suppliers of equipment and material under this Subcontract. Subcontractor shall also execute such separate guarantees directly for the benefit of Owner as may be required by the Contract Documents.

Initialed by:

Contractor: PC DS Subcontractor: CS DS

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Subcontractor shall remove, replace and/or repair at its own expense and at the convenience of Owner, Principal and Contractor any non-conforming or defective Work or Work which fails to comply with the Contract Documents. Subcontractor shall also pay all costs necessary to remove, replace and/or repair any other work or property which may be damaged in removing, replacing or repairing the Work, and shall reimburse Contractor for any loss or damage sustained by Contractor arising out of the non-conforming or defective Work.

ARTICLE 13 - PERSONNEL

Subcontractor shall employ such labor as will ensure that the work of Contractor, Principal or any other contractor or subcontractor on the Project will not be interrupted, delayed or hindered by a labor controversy or dispute of any kind. Failure to do so shall constitute a default by Subcontractor under Article 5 of this Subcontract. Labor controversies and disputes between Subcontractor, its employees and/or any other contractors or subcontractors on the Project shall not be a basis for an extension of time under the Subcontract or otherwise relieve Subcontractor of its obligations under the Subcontract.

ARTICLE 14 - PATENTS

Subcontractor shall defend, indemnify and save harmless Contractor, Principal and Owner against liability for all damages, loss and expenses, including attorneys' fees, sustained by reason of any patent infringement claims arising out of the Work.

ARTICLE 15 - REMOVAL OF RUBBISH

Subcontractor shall keep the Project free at all times from accumulation of scrap, rubbish and debris resulting from the Work. At the time of completion, Subcontractor shall clean the Work in the manner required by the Contract Documents. Subcontractor shall remove from work performed by others at the Project all dirt and other matter resulting from execution of the Work.

If Contractor notifies Subcontractor that it is delinquent in its obligations of cleanup or rubbish removal and Subcontractor fails to remedy such delinquency in a timely manner, Contractor and/or Principal have the right to take whatever steps necessary to remedy such delinquency. Subcontractor shall then be backcharged for all costs of such remedy.

ARTICLE 16 - USE OF CONTRACTOR'S TOOLS AND EQUIPMENT

Whenever Subcontractor shall use any hoist, scaffold, derrick, material, tools or equipment owned and/or furnished by Owner, Principal or Contractor, Subcontractor shall satisfy itself as to the safety and legal use thereof to the same extent as if it were owned by and in the sole control of Subcontractor. Subcontractor assumes full responsibility for the use and safety of any borrowed hoist, scaffold, derrick, materials, tools and equipment, and hereby agrees to defend, indemnify and hold harmless Owner, Principal and Contractor for any claims and damages caused by or arising out of the use thereof by Subcontractor, its agents, employees and sub-subcontractors.

ARTICLE 17 - INTERPRETATION

Interpretation of the Contract Documents is governed by the provisions of the Contract Documents, and Contractor shall not be responsible to Subcontractor for interpretations of the Contract Documents by employees or agents of Contractor, unless the interpretation is expressly provided in writing to Subcontractor by Contractor's authorized representative.

Should a dispute arise as to the scope of work required by Subcontractor under the Contract Documents, Subcontractor shall perform all disputed work promptly upon written direction of an authorized representative of Contractor. Subcontractor shall submit a fully documented and itemized claim for any adjustment to the Subcontract Price and/or time to Contractor within seven (7) calendar days from date of receipt of such written direction, and such claim shall be processed and disposed of in accordance with Article 5 as though it were a change in the Work.

ARTICLE 18 - DISPUTES

Any dispute between Contractor and Subcontractor arising out of this Subcontract or breach thereof, but not involving the Owner, Principal or Contract Documents, may, at the option of Contractor, be submitted to arbitration in accordance with

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

the Construction Industry Rules of the American Arbitration Association. Any arbitration proceeding instituted under this paragraph or under any disputes procedure in the Contract Documents may be consolidated at the option of Contractor with any other arbitration proceeding then or thereafter pending between Contractor and any other person if the respective arbitrations arise out of common questions of fact or law. The decision of the arbitrator(s) shall be final and binding upon the parties and a judgment upon any award rendered may be entered in any court of competent jurisdiction.

ARTICLE 19 - COMPLIANCE WITH LAWS

Subcontractor shall comply with all federal, state and local laws, ordinances, rules and regulations applicable to the performance of this Subcontract, including without limitation those relative to equal employment opportunity, fair labor standards, and occupational safety and health. Subcontractor shall provide written certification of compliance upon request of Contractor. Subcontractor shall defend, indemnify and hold harmless Contractor, Principal and Owner from any and all liability arising out of or attributable to Subcontractor's failure to comply with any such law.

Contractor is an equal opportunity employer in compliance with Title VII, Civil Rights Acts of 1964, Executive Order 11246 and Revised Order 4, Section 402 of the Vietnam Era Veterans Readjustment Assistance Act of 1974 and Section 503 of the Rehabilitation Act of 1973. Subcontractor will ensure that in regard to any of its contracts entered into pursuant to this Subcontract that minority and women-owned business enterprises will be afforded full opportunity to participate upon meeting the qualifications to bid on the Project, and will not be discriminated against on the grounds of race, creed, color, sex, age, disability, religion, ancestry, marital status, national origin, place of birth or sexual preference. Subcontractor shall ensure that employees and applicants for employment are not discriminated against because of race, color, sex, origin, age, marital status, sexual orientation, or disability and in conformance with all local, state and federal regulations.

Subcontractor will provide certified payrolls on a weekly basis for direct forces, both field and shop, and all sub-subcontractor forces. Department of Labor Form WH-347 is acceptable. The sex, minority status and zip code must be provided for each employee on these payroll forms.

ARTICLE 20 - COMPLETE AGREEMENT

This Subcontract constitutes the entire agreement between the parties and supersedes any and all other written or oral agreements. This Subcontract cannot be amended or changed, nor may any provision hereof be waived, except in writing signed by an authorized representative of the parties.

This Subcontract contains the only terms of the agreement between the parties and supersedes any other terms or documents, including and Rental Agreements or tickets. No other terms and conditions shall apply and any additional or different terms or conditions stated by Subcontractor in accepting, acknowledging or performing this Subcontract are rejected in advance. It is agreed between the parties that any signed Rental Agreements or tickets are for purposes only of acknowledging the time spent and/or services rendered under the Subcontract; no terms or conditions stated thereon shall have any meaning or effect on the parties.

-- END OF TERMS AND CONDITIONS --

Initialed by:

Contractor: PC DS Subcontractor: CS DS

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Instructions to Subcontractors

Initial each page of the Subcontract Terms and Conditions where indicated and return two (2) signed Subcontracts to our office at **30 Corporate Drive, Suite 350, Burlington, MA, 01803.** One fully executed copy will be returned to your office.

Your attention is directed to the following requirements:

(1) Do not mark up or make any changes to this Subcontract. If you would like to discuss changes to the Subcontract and/or the Subcontract Terms and Conditions, please contact the Limbach Company LLC Project Manager.

(2) Insurance Certificates are required prior to the commencement of work in accordance with the General Conditions of this Project or as stated in Article 9 of this Subcontract, whichever is greater. In the event that additional insureds are required by the General Contractor or Principal Contract, specific language will be provided.

(3) Each Subcontractor shall prepare an AIA (or equivalent) form G702 Schedule of Values to be used in their scope of work for review and approval prior to the first request for payment. The Schedule of Values must accompany all requests for payment.

(4) Limbach Company LLC forms for your use in requisitioning for progress payments will be provided. Additional forms, lien waivers, etc. may be required by the General Contractor or Principal Contract and, if so, will be provided. Requisitions (using the Limbach Company LLC form) as well as AIA and additional requirements shall be submitted on the **15th** of each month and should reflect work projected to the end of that calendar month.

(5) Requisitions will not be processed unless insurance certificates are current and all attachments have been received.

(6) Required forms:

	Yes	No
Certified Payroll Reports	[ ]	[N]
Payment and Performance Bonds	[ ]	[N]

Additional forms:
"Not Applicable"

(7) Each Subcontractor shall prepare a Subcontractor Contract Summary form. It is to be submitted with each monthly requisition for payment.

(8) Email monthly requisitions to ne.apinvoices@limbachinc.com

If you require additional information, please contact the Limbach Company LLC Project Manager.

Revised: 9/24/04

LIMBACH COMPANY LLC

Initialed by:

Contractor: PC Subcontractor: CS

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

SUBCONTRACTORS REQUISITION FOR PAYMENT

NAME & ADDRESS OF SUBCONTRACTOR

DATE: _____
REQUISITION
FOR PAYMENT NO.: _____
SUBCONTRACT NO.: _____

ORIGINAL SUBCONTRACT AMOUNT $ _____ JOB NAME _____.

AMENDMENTS TO SUBCONTRACT $_____ LOCATION: _____

TOTAL AUTHORIZED SUBCONTRACT AMT. $_____ TYPE OF WORK:_____.

VALUE OF WORK COMPLETED BY SUBCONTRACTOR AS PER DETAIL ON REVERSE SIDE HEREOF:	SINCE LAST REPORT	TOTAL TO DATE
FROM: TO:	$_____	$_____
LESS RETAINED PERCENTAGE.	$_____	$___
NET AMOUNT EARNED THIS REQUISITION	$_____	$_____
LESS PAYMENTS TO DATE		$_____
LESS BACK CHARGES	$_____	$_____
TOTAL PAYMENTS AND BACK CHARGES TO DATE $_____		
AMOUNT REQUESTED THIS REQUISITION	$_____	$_____

Subcontractor covenants that it will receive the payment paid pursuant to this Requisition and will hold such payment as a trust fund to be applied first to paying the claims of subcontractors, laborers and materialmen arising out of the performance of the Subcontract, before using any part of the total for any other purpose. Subcontractor further waives and releases any and all claims, liens or right of lien it has to the extent of the payment received. Subcontractor further agrees to indemnify and hold harmless the Contractor and the Owner from and against any and all lien claims of its subcontractors and suppliers arising out of the performance of the Subcontract.

To induce the making of the payment hereby requested, the Subcontractor represents that all claims of its subcontractors and suppliers, for which it has received payment from the Contractor, have been paid together with all taxes applicable thereto, except for the following:

CLAIMANT	NATURE OF CLAIM	AMOUNT

LCO ONLY

Vendor # Voucher #
11-03 Sub 11-04 Ret
Order# Invoice #
Unit # 01 00 4 Invoice Date
Gross G/L Acct: #223
Retainage Retainage
Net

Subcontractor:

By: _____
Authorized Signatory Title Date

Payment authorized by:

PROJECT ENGINEER DATE

OPERATING DEPT. MANAGER DATE

Checked by:

INVOICE AUDIT SECTION DATE

BUSINESS DEPT. MANAGER DATE

Initialed by:

Contractor: PC Subcontractor: CS

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

SUB. CONTR. ITEM NO.	DESCRIPTION OF WORK	TOTAL VALUE AT COMPLETION	TO LAST REPORT	SINCE LAST REPORT	TOTAL TO-DATE

(IF SPACE IS INSUFFICIENT, ATTACH DETAIL)

INSTRUCTIONS TO SUBCONTRACTOR:

1. Requisitions for payment shall be submitted in triplicate to Contractor's job office and shall be numbered consecutively.
2. Show Subcontractor's name and address as in subcontract.
3. "Original Subcontract Amount" is the Lump Sum, if subcontract is so priced.
4. "Amendments to Subcontract." Show here the total of any extras minus credits covered by Amendments to Subcontract that have been issued. No other extras or credits will be recognized.
5. Amounts earned by Subcontractor "Since Last Report" and "Total to Date" shall be for work performed to end of the period covered by Requisition for Payment, as detailed in the columns above. (Use separate sheet if space is inadequate.)
6. Subcontractor must show any claims against it (or him) arising out of the subcontract that have not been fully paid—give name of claimant, what the claim covers and amount thereof, in spaces provided therefor

Initialed by:

Contractor: PC (DS) Subcontractor: CS (DS)

Docusign Envelope ID: D5BB6163-AAA0-4FEA-A5C4-F0688C8787C6

Subcontractor Contract Summary

Limbach Company Job #:_____ Date:_____

The following is a current summary of our contract.

Original Contract
Change Order # 1 (Reference your proposal # here)

Change Order # 2 (Reference your proposal # here)

Change Order # 3 (Reference your proposal # here)

Change Order # 4 (Reference your proposal # here)

Revised Contract Value

A. Proceeding with the following work - awaiting Change Orders

	CCD #	Description	Cost
1.			
2.			
3.			
4.			
		Subtotal:	$-

B. Awaiting Direction to Proceed - Quotation Only CCD Issued

	CCD #	Description	Cost
1.			
2.			
3.			
4.			
		Subtotal:	$-

D. Items to be Quoted

	CCD #	Description	Cost
1.			
2.			
3.			
4.			
		Subtotal:	$-

F. Rejected and/or Not Required

	CCD #	Description	Cost
1.			
2.			
3.			
4.			
		Subtotal:	$

G. Allowances Incorporated within the Project

		Allowance Cost
1		
2		
3		
4		
	Subtotal:	$

Initialed by:

Contractor: PC DS Subcontractor: CS DS